

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE J		PAGE OF PAGES 1 14	
2. AMENDMENT/MODIFICATION NO. 0002		3. EFFECTIVE DATE 09-Jun-2025		4. REQUISITION/PURCHASE REQ. NO.		5. PROJECT NO.(If applicable)	
6. ISSUED BY NAVFAC ENGINEERING SYSTEMS COMMAND SE CORE CONSTRUCTION BLDG 903 YORKTOWN PO BOX 0030 JACKSONVILLE FL 32212-0030		CODE N69450		7. ADMINISTERED BY (If other than item 6) See Item 6			
8. NAME AND ADDRESS OF CONTRACTOR (No., Street, County, State and Zip Code)				X		9A. AMENDMENT OF SOLICITATION NO. N6945025R0011	
				X		9B. DATED (SEE ITEM 11) 01-May-2025	
						10A. MOD. OF CONTRACT/ORDER NO.	
						10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS							
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offer ☐ is extended, ☒ is not extended. Offer must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended by one of the following methods: (a) By completing Items 8 and 15, and returning <u>1</u> copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.							
12. ACCOUNTING AND APPROPRIATION DATA (If required)							
13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.							
A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.							
B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(B).							
C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:							
D. OTHER (Specify type of modification and authority)							
E. IMPORTANT: Contractor ☐ is not, ☐ is required to sign this document and return _____ copies to the issuing office.							
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.) Design-Build (DB) and Design-Bid-Build (DBB) Indefinite-Delivery, Indefinite-Quantity (IDIQ) Firm-Fixed Price (FFP) Medium Multiple Award Construction Contract (MACC) for Naval Engineering Facilities Engineering Systems Command Southeast (NAVFAC SE) Area of Operations (AO) which includes, but is not limited to, the States of Florida, Georgia, Louisiana, Mississippi, South Carolina, Tennessee and Texas. The purpose of this amendment is stated on Page 2, Summary of Changes. NEW PROPOSAL DUE DATE							
Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.							
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
				TEL: _____ EMAIL: _____			
15B. CONTRACTOR/OFFEROR _____ (Signature of person authorized to sign)		15C. DATE SIGNED		16B. UNITED STATES OF AMERICA BY _____ (Signature of Contracting Officer)		16C. DATE SIGNED 09-Jun-2025	

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

SECTION SF 30 - BLOCK 14 CONTINUATION PAGE (SF 30)

The following have been added by full text:

AMENDMENT 0002

The purpose of this amendment is as follows:

- 1.) Change the proposal due date from **2:00PM ET September 08, 2025 to 2:00PM ET June 16, 2025.**
- 2.) Update language in section 00 22 00 – Supplementary Instructions, Evaluation, B. Evaluation factors for award, 3. Basis of Evaluation and Submittal Requirements for Each Factor, (b) Non-Price Factors (Phase One), Factor 2, Experience.

Note* If you submitted a proposal already you are not required to submit another proposal. If you would like to revise your proposal the due date is as described above.

All other terms and conditions of the solicitation remain unchanged.

Acknowledgement of this Amendment is required with your proposal submissions.

SECTION 00 10 00 - SOLICITATION

The required response date/time has changed from 08-Sep-2025 02:00 PM to 16-Jun-2025 02:00 PM.

SECTION 00 22 00 - SUPPLEMENTARY INSTRUCTIONS

The following have been modified:

EVALUATION**A. BASIS FOR AWARD**

1. The Government reserves the right to eliminate from consideration for award any or all offers at any time prior to award of the contracts; to negotiate with offerors in the competitive range; and to award the contracts to the offerors submitting the proposals determined to represent the best value -- the proposals most advantageous to the Government, price and other factors considered.
2. The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.
3. The tradeoff process is selected as appropriate for this acquisition. The Government considers it to be in its best interest to allow consideration of award to other than the lowest priced offeror or other than the highest technically rated offeror.

4. All technical factors when combined are of equal importance to the performance confidence assessment (past performance) rating; and all technical factors and the performance confidence assessment (past performance) rating, when combined are approximately equal to price.

5. Any proposal found to have a deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award, unless the deficiency is corrected through discussions. An Unacceptable rating in any of the non-price factors will result in an overall rating of Unacceptable for the non-price factors, unless corrected through discussions. Proposals may be found to have either a significant weakness or multiple weaknesses that impact either the individual factor rating or the overall rating for the proposal.

B. EVALUATION FACTORS FOR AWARD

1. The solicitation requires the evaluation of price and the following non-price factors:

Phase One:

Factor 1 – Technical Approach

Factor 2 – Experience

Factor 3 – Safety

Factor 4 – Past Performance

* All factor one ratings will be carried over into Phase Two.

Phase Two:

Factor 5 – Technical Solution

Factor 6 – Schedule

This procurement will utilize a Two-Phase submission DB Selection method. This method will include two parts and will allow for the submission of non-price factors for Phase One and submission of additional non-price factors and price for Phase Two.

PHASE TWO SEED PROJECT TASK ORDER

The seed project will be identified prior to entering into Phase Two of the procurement. The seed project is subject to change based on funding availability and priorities. The seed project task order RFP will be issued in Phase Two of this two-phase procurement.

Offerors participating in Phase Two will be required to submit non-price and price proposals. Offerors who fail to submit non-price and price proposals will not be considered for award.

The distinction between corporate experience and past performance is corporate experience pertains to the types of work and volume of work completed by a contractor that are comparable to the types of work covered by this requirement, in terms of size, scope, and complexity. Past performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

2. Factors 1-4 will be evaluated in Phase One, and Factors 5 and 6 will be evaluated in Phase Two. Factor 1 will only be rated Acceptable or Unacceptable. If an Offeror is rated Unacceptable in Factor 1, they will not be considered for Phase Two. In making the best value award decision after Phase Two, the Government will consider Factors 2-6 and price. The relative order of importance of the non-price evaluation factors is the technical factors (Factors 1, 2, 3, 5, and 6) are of equal importance to each other and, when combined, are equal in importance to the past performance evaluation/performance confidence assessment factor (Factor 4). When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-price evaluation factors) are approximately equal to price.

The importance of price will increase if the Offerors' non-price proposals are considered essentially equal in terms of overall quality, or if price is so high as to significantly diminish the value of a non-price proposal's superiority to the Government. Award will be made to the responsible offerors whose offer conforms to the solicitation and represents the best value to the Government, price and non-price factors considered.

3. Basis of Evaluation and Submittal Requirements for Each Factor.

(a) Submission Requirements (Phase One):

(1) Solicitation Submittal Requirements: Provide one electronic copy of the solicitation submittal requirements identified below. Font size is to be Ariel or Times New Roman, point 11 or greater. However, font size of 10 is acceptable for filling out Construction & Design Experience Project Data Sheets and the Safety Data Sheet. Organizational Charts, Graphics, and Tables must utilize point 10 or greater. Headers, footers and the cover page are exempt from the 11pt minimum font requirement.

Non-Price proposal and Submission Requirements shall be separate files and shall be labeled "Submission Requirements" and "Non-Price Proposal," as appropriate. Both files shall be Adobe PDF formatted with a size NTE 1.9 GB for Submission Requirements (Multiple files can be submitted).

a. Cover letter with the following information:

- i. Type of Proposal (Submission Requirements or Non-Price)
- ii. RFP Number and Title of Project
- iii. Offeror's Name
- iv. Authorized negotiator(s) (Point of Contact (POC)) name(s)
- v. POC(s) telephone number(s)
- vi. POC(s) email address(es)
- vii. CAGE codes for offeror and design team(s)
- viii. System for Award Management (SAM) Unique Entity Identification Numbers for offeror and design team(s)
- ix. Taxpayer Identification Numbers (TIN) for offeror and design team(s)
- x. Business Size (Large or Small Business)

If proposing as a joint venture, offerors shall also provide the Unique Entity ID Number, Cage Code and TIN for the members of the joint venture.

b. Executed SF1442. Offeror shall insert its company name and address in Block #14, telephone number in Block #15, acknowledge all amendments in Block #19 (if applicable), name and title of person authorized to sign in Block #20A, signature in Block #20B, and offer date in Block #20C of the SF1442. In addition, offeror shall provide its Unique Entity Identifier (UEI), formerly known as the DUNS number, CAGE code, and Federal Tax ID number with its proposal. If proposing as a joint venture, offerors shall provide the UEI and CAGE code for the members of the joint venture.

c. Bonding Letter. Offeror shall confirm that it has a single award bonding capacity of at least \$35,000,000 and the ability to bond multiple projects.

d. SAM registration. Offeror shall ensure current registration on the SAM website, www.sam.gov, including that it's Annual Representations and Certifications are complete and updated for this procurement. If a Representation or Certification required by Section 00 45 00 of the RFP is not provided in SAM, include the representation or certification in your proposal.

A small business joint venture offeror must submit, with its offer, the representation required in paragraph (c) of FAR solicitation provision 52.212- 3, Offeror Representations and Certifications-Commercial Products and Commercial Services, and paragraph (c) of FAR solicitation provision 52.219- 1, Small Business Program Representations, in accordance with 52.204-8(d) and 52.212-3(b) for the following categories:

- (A) Small business;
- (B) Service-disabled veteran-owned small business;
- (C) Women-owned small business (WOSB) under the WOSB Program;
- (D) Economically disadvantaged women-owned small business under the WOSB Program; or

(E) Historically underutilized business zone small business.

e. Responsibility / Qualification section of SAM.gov (formerly FAPIIS Certification). Offeror shall ensure its information is current, as required by FAR 52.209-7, Information Regarding Responsibility Matters (Oct 2018).

f. VETS-4212 registration. Offeror shall ensure a current VETS-4212 report has been submitted to the Department of Labor (DOL) website, <http://www.dol.gov/vets/vets4212.htm>, if the offeror is required to submit. An email confirmation of submission can be requested and received by the offeror from the DOL website and submitted in the proposal. If the offeror is not required to submit a report to VETS-4212, include a brief statement stating that the offeror is not required to submit a report and why. Visit the VETS-4212 website for details concerning if your company is required to submit a VETS-4212 report and to request an email confirmation of submission.

Note: The SAM, Responsibility / Qualification section of SAM.gov, and VETS-4212 registrations must be in the name/CAGE/UEI of the offeror identified on the SF1442.

(2) Basis of Evaluation: Offerors will be evaluated on the information required to be submitted in the solicitation submittal requirements identified above.

(b) Non-Price Factors (Phase One):

Factor 1, Technical Approach:

(1) Solicitation Submittal Requirements: The composition and management of the firms proposed as the Design Build (DB) team for this contract will be evaluated in this factor.

The offeror shall submit the following information:

a. Provide a narrative describing the proposed primary construction firm(s) and primary design firm(s) for this contract and the rationale for proposing this arrangement. Provide the role, responsibilities, and contractual relationships between the various firms (see FAR Subpart 9.6).

b. Provide a simple organizational chart that clearly identifies the lines of authority between the entities. If the experience of an entity is being claimed in Factor 2, that entity must be named in the above narrative and organizational chart.

The technical approach narrative shall be limited to one (1) double-sided page (or two (2) single-sided pages), including the organizational chart. The information requested in item c., below, is not included in this page limitation.

c. In addition to the narrative, the offeror shall submit a signed copy of a joint venture agreement, partnership agreement, teaming agreement, approved mentor protégé agreement (MPA), or letter of commitment for each member of the offeror's team identified above (e.g., joint venture member, partner, team member, subcontractor, parent company, subsidiary, or other affiliated company, etc.).

NOTES: (i) If the experience of an entity other than the offeror is being claimed in Factor 2, (i) Solicitation Submittal Requirements, (1) Construction Experience, the offeror shall submit a signed copy of a joint venture agreement, partnership agreement, teaming agreement, or approved mentor protégé agreement (MPA). A letter of commitment is not acceptable. The offeror may not utilize experience of a subcontractor to demonstrate construction experience for Evaluation Factor 2.

(ii) Letters of commitment for the Designer of Record shall be addressed from the Designer of Record to the offeror. The Designer of Record's letter of commitment shall be signed by the Designer of Record's signing authority.

(2) Basis of Evaluation: The assessment of the offeror's technical approach will be used as a means to evaluate the organizational structure and teaming relationships proposed by the offeror. This factor will be rated on an Acceptable or Unacceptable basis.

Factor 2, Experience:

(i.) Solicitation Submittal Requirements:

1. Construction Experience:

- a. Submit five (5) relevant construction projects demonstrating Prime Contractor, multi-discipline, construction experience on projects with a contract value of \$4,000,000 or greater. For a protege in a valid mentor-protege joint venture, the minimum dollar value is reduced to \$1,600,000 or greater.

Prime Contractor is defined as the entity holding privity of contract with the Government or the project owner, and directly responsible for project management and oversight of subcontractors.

In accordance with Small Business Administration (SBA) regulations, if a small business offeror includes a proposed team of small business subcontractors, specifically identifies the first-tier small business subcontractor(s) in the proposal (e.g. joint venture, partnership, teaming agreement, approved mentor/protege agreement), and submits projects completed by said first-tier subcontractor(s) as prime contractors, the agency will evaluate the projects as if they had been completed by the offeror.

- b. Projects submitted for the offeror shall be completed within the past seven (7) years of issuance of this RFP. Completion is defined as fulfillment of all contractual obligations necessary for final payment or financial closeout. Beneficial Occupancy is not considered completion.
- c. Projects submitted for consideration shall include at least one (1) new construction project and one (1) renovation project.
- d. Projects submitted for consideration shall include at least one (1) Design-Build (DB) and one (1) Design-Bid-Build (DBB) project. Projects delivered via Early Contractor Involvement (ECI) will be evaluated as DBB projects.

A project is defined as a construction project performed under a single task order or contract. For multiple award and IDIQ-type contracts, the contract as a whole shall not be submitted as a project; rather, offerors shall submit the work performed under a single task order as a project.

The attached Construction & Design Experience Project Data Sheet (Exhibit A) is MANDATORY and SHALL be used to submit project information. If the same project is being used to demonstrate construction and design experience, submit separate Project Data Sheets for construction and design. The Government may disregard any information that is submitted outside of this form. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed one (1) double-sided page (or two (2) single-sided pages). The use of Times New Roman font size 10 is acceptable for filling out the Project Data Sheets.

For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the project requirements of this RFP.

If the offeror is a Joint Venture (JV), relevant project experience should be submitted for projects completed by the JV entity. If the JV does not have shared experience, at least two (2) projects shall be submitted by each JV member. The total number of projects submitted by the Offeror is limited to five (5) projects.

If an offeror is utilizing experience information of affiliates/subsidiaries/parent/LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent firm will have meaningful involvement in the performance of the contract.

2. Design Experience:

- a. Submit six (6) relevant design projects demonstrating multi-discipline design experience on project with a construction contract value of \$4,000,000 or greater.
- b. Design projects must have been completed within the past seven (7) years of the date of issuance of this RFP. Design project completion is defined as delivery of 100% design package with all contractual requirements met for final payment or financial closeout.
- c. For DB projects, the design portion of the contract shall have been completed within the past seven (7) years of the date of issuance of this RFP. The Final Design Completion Date must be clearly indicated on the Project Data Sheet. The Final Design Completion Date applies to both DB and DBB projects. For DBB projects, it does not include Post Construction Award Services.
- d. Projects submitted for consideration shall include at least one (1) new construction project and one (1) renovation project. Projects submitted can be from DB or DBB projects.

A project is defined as a complete design effort (accepted final design) performed under a single task order or contract/subcontract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; rather Offerors shall submit the work performed under a single task order as a project.

The attached Construction & Design Experience Project Data Sheet (Exhibit A) is MANDATORY and SHALL be used to submit project information. If the same project is being used to demonstrate construction and design experience, submit separate Project Data Sheets for construction and design. The Government may disregard any information that is submitted outside of this form. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed one (1) double-sided page (or two (2) single-sided pages). The use of Times New Roman font size 10 is acceptable for filling out the Project Data Sheets.

For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the project requirements of this RFP.

If an offeror is utilizing experience information of affiliates/subsidiaries/parent/ LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent firm will have meaningful involvement in the performance of the contract.

The offeror may utilize experience of a design subcontractor to demonstrate design experience under this evaluation factor. The offer must provide a supporting joint venture agreement, partnership agreement, teaming agreement, or letter of commitment and an explanation of the meaningful involvement for the design subcontractor.

Offerors proposing multiple design firms shall submit at least two (2) relevant projects from each design firm, demonstrating experience for all design firms. Failure to do so may result in a lower rating. All design firms for which experience is submitted must be included in the requirements for Factor 1, particularly inclusion in the narrative and the organizational chart, as well as a signed copy of a joint venture agreement, partnership agreement, teaming agreement, approved mentor protégé agreement (MPA), or letter of commitment. Each design firm must meet the project submittal requirements of 2. Design Experience (a)-(d), above.

(2) Basis of Evaluation: The basis of evaluation will include the offeror's demonstrated experience and depth of experience in performing relevant construction and design projects as defined in the solicitation submittal requirements. The assessment of the offeror's relevant experience will be used as a means of evaluating

the capability of the offeror to successfully meet the requirements of the RFP. The Government will only review five projects for construction and six for design. Any projects submitted in excess of the five (5) for Construction Experience and six (6) for Design Experience will not be considered.

For construction projects submitted, relevant projects that clearly indicate the following items may be considered more favorably.

- Relevant projects where the offeror and the proposed design firm(s) have previously worked together..
- Relevant projects that demonstrate Department of Defense (DoD) Design-Bid-Build (DBB) or Design Build (DB) experience.
- Relevant projects that demonstrate offeror's experience on multiple facility types for construction.
- Relevant projects that demonstrate offeror's experience coordinating work or activities with other contractors on the same site, facility, or installation.
- Relevant projects that demonstrate offeror's experience overcoming significant site or soil limitations, major challenges, and/or unforeseen conditions.
- Relevant projects that demonstrate offeror's experience implementing innovative, alternative methods/processes that reduced the project schedule and/or cost.
- Relevant projects that demonstrate offeror's experience with Sensitive Compartmented Information Facility (SCIF) and Special Access Program Facility (SAPF) spaces with special construction features to achieve accreditation.

For design projects submitted, relevant projects that clearly indicate the following items may be considered more favorably.

- Relevant projects where the offeror and the proposed design firm(s) have previously worked together.
- Relevant projects that demonstrate the proposed design firm's DoD DB and DBB experience.
- Relevant projects that demonstrate the proposed design firm's experience on multiple facility types for construction.
- Relevant projects that demonstrate the proposed design firm's experience overcoming significant site or soil limitations, major challenges, and/or unforeseen conditions.
- Relevant projects that demonstrate the proposed design firm's experience implementing innovative alternative methods/processes that reduced the project schedule and/or cost.
- Relevant projects that demonstrate the proposed design firm's experience with Sensitive Compartmented Information Facility (SCIF) and Special Access Program Facility (SAPF) spaces with special construction features to achieve accreditation.
- Relevant projects that demonstrate the proposed design firm's experience integrating cybersecurity requirements in accordance with UFC 4-010-06 Cybersecurity of Facility-Related Control Systems.

Factor 3, Safety:

(1) Solicitation Submittal Requirements: The offeror shall submit the following information: The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate; and Total Case Rate (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative, as described further below. For a partnership or joint venture, the offeror shall submit separate DART rates and TCR for the specified five (5) CY for each contractor who is part of the partnership/joint venture; however, only one safety narrative is required. Any fatalities experienced within this five-year timeframe must be explained in detail, to include root cause and corrective actions.

NOTE: DART and TCR shall not be submitted for subcontractors.

1. DART Rate: Submit five (5) previous complete calendar years' [CY2020, CY2021, CY2022, CY2023, and CY2024] worth of data (not an overall average). If the offeror has no DART rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

a. DART cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.

b. Calculation of DART rate: Multiply the total number of DART cases by 200,000, and then divide by the number of employee labor hours worked.

$$DART\ RATE = \frac{\text{Number of DART Incidents} \times 200,000}{\text{Total Number of Employee Labor Hours Worked}}$$

2. TCR Rate: Submit five (5) previous complete calendar years' [CY2020, CY2021, CY2022, CY2023, and 2024] worth of data (not an overall average). If the offeror has no TCR rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

a. TCR cases include injuries or illnesses resulting in death, days away from work, restricted work or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.

b. Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000, and then divide by the number of employee labor hours worked.

$$TCR\ RATE = \frac{\text{Number of TCR Incidents} \times 200,000}{\text{Total Number of Employee Labor Hours Worked}}$$

3. Technical Approach to Safety: Submit a narrative that addresses the following:

a. Describe the offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

b. Describe the evaluation process used to select potential subcontractors.

c. Describe the processes of how the offeror will oversee safety compliance of subcontractors at all levels throughout performance of the contract (to include the offeror's own in-house workforce).

d. The Technical Approach to Safety narrative shall be limited to two (2) single-sided pages or one (1) double-sided page.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), CPARS, Electronic Contract Management System (eCMS), etc.

A copy of the Safety Data Sheet that must be used for submission of safety information is included as Exhibit B.

(2) Basis of Evaluation: The Government is seeking to determine that the offeror has consistently demonstrated a commitment to safety and that the offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The evaluation will collectively consider the DART rate, TCR, Technical Approach to Safety, and other sources of information available to the Government as part of such collective evaluation. The Government will evaluate the DART rates and TCR to determine if the offeror has demonstrated a history of safe work practices taking into account any negative trends and extenuating circumstances that impact the rating.

1. DART Rate: The Government will evaluate trends over the last five (5) years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

a. Missing data without a sufficiently detailed explanation is considered a deficiency. Any proposal found to have a deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award.

b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) may indicate a strength.

c. An increasing DART rate trend may be considered a weakness (i.e., MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.

d. This chart correlates the DART rate to the level of risk:

Risk	<u>DART Rate</u>
Very Low Risk	Less Than 1.0
Low Risk	From 1.0 to 1.99
Moderate Risk	From 2.0 to 2.99
High Risk	From 3.0 to 4.0
Extremely High Risk	Greater than 4.0

2. TCR Rate: The Government will evaluate trends over the last five (5) years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

a. Missing data without a sufficiently detailed explanation is considered a deficiency. Any proposal found to have a deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award.

b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) may indicate a strength.

c. An increasing TCR rate trend may be considered a weakness (i.e., MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.

d. This chart correlates the TCR rate to the level of risk:

<u>Risk</u>	<u>TCR Rate</u>
Very Low Risk	Less Than 2.49
Low Risk	From 2.5 to 3.49
Moderate Risk	From 3.5 to 4.49
High Risk	From 4.5 to 5.99
Extremely High Risk	Greater than 6.0

3. The Technical Approach to Safety Narrative. To determine the degree to which the offeror:

a. Is missing data. Missing data is considered a deficiency. Any proposal found to have a deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award.

b. Describes a viable SMS that addresses elements; such as Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

c. Describes a methodical process of evaluating subcontractor's safety performance in their selection process.

d. Describes a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.

e. The Technical Approach to Safety narrative shall be limited to two (2) single- sided pages or one (1) double-sided page. Information on pages beyond this will not be considered.

f. Safety awards submitted will not be considered.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), CPARS, Electronic Contract Management System (eCMS), etc.

Factor 4, Past Performance:

(a) Solicitation Submittal Requirements:

If a completed Contractor Performance Assessment Reporting System (CPARS) evaluation is available, it shall be submitted with the proposal for each project included in Factor 2 for construction experience. If a completed A&E Contractor CPARS evaluation is available, it shall be submitted with the proposal for each project included in Factor 2 for design experience. If there is not a completed CPARS evaluation then submit Past Performance Questionnaires (PPQ) (Exhibit C) for each project included in Factor 2 for both Construction Experience and Design Experience.

The Offeror should provide completed PPQ in the proposal. Offerors shall not incorporate by reference into their proposal PPQs previously submitted for other RFPs. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation. If the Offeror is unable to obtain a completed PPQ from a client for a project(s) before proposal closing date, the Offeror shall complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective project(s). The Government may make reasonable attempts to contact the client noted for that project(s) to obtain the PPQ information. However, Offerors should follow-up with clients/references to help ensure timely submittal of questionnaires. If the client requests, questionnaires may be submitted directly to the Government's point of contact, Matthew Abbott at matthew.j.abbott5.civ@us.navy.mil.

Offerors may provide any information on problems encountered and the corrective actions taken on projects submitted under Factor 2 – Experience. Offerors may also address any adverse past performance issues. Explanations shall not exceed two (2) double-sided pages (or four (4) single-sided pages) in total.

The Government reserves the right to contact references for verification or additional information. The Government's inability to contact any of the Offeror's references or the references unwillingness to provide the information requested may affect the Government's evaluation of this factor.

Performance award or additional information submitted will not be considered.

(b) Basis of Evaluation:

This evaluation will consider how well the Offeror's team performed on relevant projects submitted under Factor 2 – Experience and may also consider past performance on other projects currently documented in known sources.

The Government will consider the recency and relevance of the information (as defined in Factor 2 - Experience), the source of the information, context of the data, and general trends in the Contractor's performance. This evaluation is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the Offeror's team's past performance will be used as a means of evaluating the Offeror's team's probability to successfully meet the requirements of the RFP.

Offerors lacking relevant past performance history will receive a NEUTRAL Confidence rating.

(c) Price (Phase Two):

(1) Solicitation Submittal Requirements: Provide one (1) electronic copy of the solicitation submittal requirements identified below.

a. Executed SF1442. Offeror shall insert its company name and address in Block #14, telephone number in Block #15, acknowledge all amendments in Block #19 (if applicable), name and title of person authorized to sign in Block #20A, signature in Block #20B, and offer date in Block #20C of the SF1442. In addition, offeror shall provide its Unique Entity Identifier (UEI), formerly known as the DUNS number, CAGE code, and Federal Tax ID number with its proposal. If proposing as a joint venture, offerors shall provide the UEI and CAGE code for the members of the joint venture.

b. Executed DD1155. Offerors shall insert their company name and address in Block #9, signature, date signed, and name and title of person authorized to sign in Block #16, and the seed project price on the DD1155. In addition, offerors shall provide their UEI number, CAGE code, and federal Tax ID number, with their proposal.

c. Bid bond (SF-24). Offeror shall submit a bid bond (SF-24) in the amount of 20% of total project bid price or \$3,000,000, whichever amount is less. On the Bid Bond, specify "For: Construction," followed in the next box by the project title. A copy of the original Bid Bond must be submitted with the proposal. Provide verification that the individual signing the Bond has the requisite authority to bind the company. The bond may be electronic and does not have to be physically submitted so long as the raised seal in all areas is visible.

d. Acknowledgement of all amendments.

e. Representations & Certification. Offeror shall ensure current registration on the SAM Website, www.sam.gov, including that Annual Representations and Certifications are complete and updated for this procurement.

f. Responsibility / Qualification section of SAM.gov (formerly FAPIIS Certification). Offeror shall ensure its information is current, as required by FAR 52.209-7, Information Regarding Responsibility Matters (Oct 2018).

g. VETS-4212 Registration. Offeror shall ensure a current VETS-4212 report (previously VETS-100 and/or VETS-100A been submitted to the Department of Labor website, <https://www.dol.gov/vets/vets4212.htm>, if the offeror is required to submit. An email confirmation of submission can be requested and received by the offeror from the DOL website and submitted in the price proposal. If the offeror is not required to submit a report to VETS-4212, include a brief statement stating that the offeror is not required to submit a report and state the reason. Visit the VETS-4212 website for details concerning if your company is required to submit a VETS-4212 report and to request an email confirmation of submission.

Note: The bid bond, SAM, Responsibility / Qualification section of SAM.gov, and VETS-4212 registrations must be in the name/CAGE/UEI of the offeror identified on the SF1442 and DD1155.

(2) Basis of Evaluation: The Government will evaluate the SEED project price based on the total price. Total price consists of the basic requirements and any option items identified. The Government intends to evaluate all options and has included the provision FAR 52.217-5, Evaluation of Options (JUL 1990) in the solicitation. In accordance with FAR 52.217- 5, evaluation of options will not obligate the Government to exercise the option(s). Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:

- (i) Comparison of proposed prices received in response to the RFP.
- (ii) Comparison of proposed prices with the IGCE.
- (iii) Comparison of proposed prices with available historical information.
- (iv) Comparison of market survey results.

ADDITIONAL INFORMATION TO BE SUBMITTED WITH PRICE PROPOSAL PACKAGE:

RESPONSIBILITY DETERMINATION INFORMATION - In order to be eligible for award, the offeror must be determined responsible in accordance with FAR Part 9, specifically 9.104-1, General Standards. In a separate tab, the offeror shall provide the following information in the price proposal package:

1. One (1) signed bank reference demonstrating adequate financial resources. If offeror's firm has a line of credit, provide information on how many figures the offeror can borrow against the line of credit (e.g., medium 6 figures – exact line of credit is not required).

2. The offeror shall provide the latest three complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or signed by an authorized officer of the organization. At a minimum a complete fiscal year financial statement contains the below information:

- Balance Sheet
- Income Statement
- Statement of Cash Flows
- Statement of Shareholders Equity

Submit evidence of availability of working/operating capital, which will be used for the performance of the resultant contract. For Joint Venture arrangements, submit the latest three complete fiscal year financial statements for each

company in the Joint Venture and discuss the financial responsibilities among the companies. The Government may also utilize Dun & Bradstreet and other reports to evaluate the financial capacity of the offeror.

3. Description of offeror's facilities and equipment.

4. Other offeror's work presently under contract.

Although required to be submitted with offeror's price proposal, this information will not be evaluated as part of the price proposal. This information forms the basis of your firm's responsibility determination should your firm be considered for award. Proposal packages from unsuccessful offerors will not be returned to the offeror, but shall be destroyed by the Contracting Officer. No certificate of destruction will be issued.

(d) Non-Price Factors (Phase Two):

**All Phase One Ratings will be carried over into Phase Two*

(5) Factor 5 – Technical Solution –To be provided with Phase 2 SEED project information.

(6) Factor 6 – Schedule – To be provided with Phase 2 SEED project information.

(End of Summary of Changes)